

25SMCV00577 25SMCV00577

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is the latest in a disturbing series of parties and counsel behaving badly. Plaintiff's prior counsel moved to withdraw on August 13, 2026, and the motion was granted on August 20, 2026. In the interim, plaintiff's counsel—presumably at plaintiff's behest—sought to disqualify defense counsel, a motion denied on September 1, 2026. In the meantime, Defense counsel had served discovery and filed a discovery motion on June 25, 2026. Plaintiff apparently got around to finding new counsel on September 14, 2026. New counsel states that there has not been sufficient time to oppose the motion, which is currently set for September 18, 2026. The latter statement is plainly true, as the opposition was due before new counsel substituted in. Plaintiff therefore seeks a continuance of 30-60 days. Trial is not until January 2028, so there is no urgency on the deposition.

This has become little more than a mud-slinging contest. Plaintiff claimed that defense counsel should be disqualified because they were too personally involved in the case—being defendant's brother and husband. Defense counsel has been rude and uncivil to plaintiff's prior counsel and there is some reason to believe that defense counsel has become embroiled, but not to the point of disqualification, which was a motion that came very close to being bad faith. The court has no idea if that led to counsel's withdrawal or not, but the motion never should have been brought. Now, having made personal attacks on defense counsel, albeit not without provocation, plaintiff is shocked that there are no professional courtesies coming the other way.

The parties need to do a re-set. The court ORDERS that all pending discovery is VACATED without prejudice to being re-served. There will be a 30 day STAY on the litigation. The motion to compel

deposition is VACATED without prejudice to being re-filed not less than 30 days from now and not more than 60 days from now.

In the interim, but parties are to meet and confer through counsel to try and develop some way of working together.

This is not just an exchange of letters; it is to be a meeting in person amongst lead counsel. The parties should attempt to discuss a CMO or some other format for discovery between now and the close of discovery. The court will not become the school yard monitor. If that does not work, the court will send the case to a 639 referee at the parties' mutual expense.